

Conclusion. SOLANO's demurrer is sustained without leave to amend.

QUINT v. BAYON, ET AL.
Case No. CU24-08326

Demurrer

TENTATIVE RULING:

Defendant's demurrer and motion to strike are vacated. The motions, directed against the original complaint, have been rendered moot by the filing of Plaintiff's first amended complaint. (*JK3H8 v. Colton* (2013) 221 Cal.App.4th 468, 477.)

It appears that Plaintiff failed to effectively serve the First Amended Complaint ("FAC"), instead mailing the FAC to the City's offices prior to CITY's first appearance. Plaintiff had the duty to ensure the operative pleadings were filed and personally served. Only after Defendant's appearance could Plaintiff serve by mail.

Plaintiff shall serve the FAC within 10 days. Defendants shall file a responsive pleading pursuant to the Code of Civil Procedure.

Bank of America N.A. v. Tanuja Peiris
Case No. FCM176308

Motion to Set Aside/Vacate Dismissal and Enter Judgment

TENTATIVE RULING:

Plaintiff moves to set aside the dismissal of this action and for entry of judgment pursuant to a stipulation.

Plaintiff's motion is DENIED WITHOUT PREJUDICE.

Defendant TANUJA PEIRIS has never appeared in this action. Plaintiff submitted a request for dismissal pursuant to Code of Civil Procedure section 664.6. The request for dismissal referenced a stipulation, but no stipulation was ever filed. It appeared that a stipulation was rejected when Plaintiff attempted to file the stipulation, paying only \$20 instead of including a first appearance fee.

Further, even had the stipulation been filed, a confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of